

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #07	CCRB Case #: 202107117	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/12/2021 5:52 PM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	18 Mo. SOL 5/12/2023	Precinct: 103		
Date/Time CV Reported Sat, 11/13/2021 2:54 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/23/2021 11:36 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Cody Duffy	06180	966549	103 PCT
2. PO Daniel Ohman	10320	961032	103 PCT
3. PO Christopher Neun	16699	968667	103 PCT
4. PO Francis Marzillo	24630	963139	103 PCT
5. SGT Suzanne Lutz	01270	943677	103 PCT
6. PO Matthew Fallon	08243	961750	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nicholas Srouer	04996	949690	103 PCT
2. PO Matthew Simpson	07363	957168	103 PCT
3. PO Anthony Loffredo	20174	958825	103 PCT
4. PO Andrico Caballero	25969	971000	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Cody Duffy	Abuse: Police Officer Cody Duffy entered § 87(2)(b) [REDACTED]	A . Substantiated
B . SGT Suzanne Lutz	Abuse: Sergeant Suzanne Lutz entered § 87(2)(b) [REDACTED]	B . Substantiated
C . PO Cody Duffy	Abuse: Police Officer Cody Duffy searched location.	C . Substantiated
D . PO Cody Duffy	Force: Police Officer Cody Duffy used physical force against § 87(2)(b) [REDACTED]	D . Unfounded
E . PO Cody Duffy	Force: Police Officer Cody Duffy used physical force against § 87(2)(b) [REDACTED]	E . Exonerated
F . PO Cody Duffy	Abuse: Police Officer Cody Duffy made a sexually suggestive remark to § 87(2)(b) [REDACTED]	F . Unfounded
G . PO Cody Duffy	Discourtesy: Police Officer Cody Duffy acted discourteously toward § 87(2)(b) [REDACTED]	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On November 13, 2021, § 87(2)(b) reported the following complaint to the NYPD Internal Affairs Bureau (BR1).

§ 87(2)(b) lives with her three children, including her 3-year-old daughter § 87(2)(b) at § 87(2)(b) (§ 87(2)(b)) in Hollis, New York. At 5:45PM on November 12, 2021, a staff member from the shelter called 911 stating that they needed officers to confiscate a knife from § 87(2)(b). Police Officers Cody Duffy, Daniel Ohman, Francis Marzillo, Matthew Fallon, Christopher Neun, and Sergeant Suzanne Lutz, all of the 103 Precinct, responded. The staff, § 87(2)(b) and § 87(2)(b) spoke with PO Duffy and Sgt. Lutz to request a search of § 87(2)(b) residence of § 87(2)(b) to remove the alleged knife and then escorted all the members of service up to the unit. PO Duffy and Sgt. Lutz entered the unit (**Allegations A and B: Abuse of Authority, substantiated**). PO Duffy searched for the knife (**Allegation C: Abuse of Authority, substantiated**). § 87(2)(b) alleged that PO Duffy pushed § 87(2)(b) (**Allegation D: Force, unfounded**). PO Duffy grabbed § 87(2)(b) hand while she held a comb with a pointed metal end (**Allegation E: Force, exonerated**). § 87(2)(b) alleged that PO Duffy told her she was not his “sexual preference” (**Allegation F: Abuse of Authority, unfounded**). § 87(2)(b) reported that PO Duffy was wearing the NYPD 103 Precinct Devils Island morale patch (**Allegation G: Discourtesy, substantiated**; § 87(2)(g), § 87(4-b)).

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation received a BWC video from PO Duffy (BR2) and no videos for any other member of service (BR3).

Findings and Recommendations

Allegation A- Abuse of Authority: Police Officer CODY DUFFY entered § 87(2)(b).

Allegation B- Abuse of Authority: Sergeant SUZANNE LUTZ entered § 87(2)(b).

Allegation C- Abuse of Authority: Police Officer CODY DUFFY searched § 87(2)(b).

§ 87(2)(b) lives in the § 87(2)(b) with her children, 14-year-old § 87(2)(b), 13-year-old § 87(2)(b) and 3-year-old § 87(2)(b). At the time of the incident, she lived there for about one and a half years and never had any disputes with any of the residents or staff members. § 87(2)(b) and her children were in § 87(2)(b) on November 12, 2021. At approximately 6PM, § 87(2)(b) was bleaching her hair with a comb when officers knocked on her door. § 87(2)(b) opened the door. § 87(2)(b) alleged that PO Duffy and other officers entered without saying anything. PO Duffy searched her dresser drawers, § 87(2)(b) clothes, under the beds, her wallet and purse, the refrigerator, the cupboards, the freezer, the garbage, all her cooking utensils, and the bathroom. § 87(2)(b) followed PO Duffy. PO Duffy found one knife that § 87(2)(b) uses to cut food. PO Duffy then asked a shelter employee standing outside if she could have a knife. The employee said she could have that (BR4).

The investigation received EVENT #§ 87(2)(b) from 5:45PM on November 12, 2021, in which a § 87(2)(b) case worker states that § 87(2)(b) has a razor and was threatening another resident. The case worker is requesting that officers respond and retrieve the weapon from § 87(2)(b) (BR5).

The NYC Department of Homeless Services Incident Report #§ 87(2)(b) notes that NYPD officers arrived at the shelter due to a call about § 87(2)(b) stating she would protect herself with a razor. § 87(2)(b) employees § 87(2)(b) § 87(2)(b) and § 87(2)(b) escorted the police to § 87(2)(b) (BR6).

§ 87(2)(b) told the CCRB that the residents have full consent and control over who is allowed into their units. § 87(2)(b) said that their protocol is to call 911 as soon as they hear of a threat or weapon and to assist the police's investigation (BR7).

§ 87(2)(b) was part of the security team and oversaw all the security measures and guards in the facility. Residents are allowed one cooking knife per resident and this is issued upon their arrival. As per shelter protocol, the security went into § 87(2)(b) to do a room inspection after § 87(2)(b) said she would "slice someone" with a weapon before calling the police. All staff are informed of the alleged weapons if any resident may have one. During this inspection, as per shelter protocol, shelter security cannot go through any personal belongings of the residences but just look through unit property (refrigerators, appliances, etc). Security did not find a weapon in § 87(2)(b) unit. If they still have no weapon, as in this case, § 87(2)(b) and his team still have probable cause and so call the police to do a full search. Staff informed § 87(2)(b) that police were going to come, and she was not happy, but knew that this was the procedure for the shelter. They called the police less than 10 minutes after the room inspection. When the police arrived, § 87(2)(b) allowed them to enter and search. The residents have full control and consent over who enters their units. Staff cannot override a resident's consent or non-consent (BR8).

PO Duffy and Sgt. Lutz arrived testified to the CCRB that both PO Duffy and Sgt. Lutz responded to the shelter with their partners and spoke to two case workers. The case workers told them that another resident reported that § 87(2)(b) threatened them with a knife at § 87(2)(b) place of work. The residents are not allowed to have any knives other than a shelter-issued knife. The case workers requested that the members of service search and remove the alleged weapon. The workers escorted police to § 87(2)(b) and stayed outside. PO Duffy and Sgt. Lutz described § 87(2)(b) as argumentative and never let them speak to her. PO Duffy explained during his CCRB interview that he entered because § 87(2)(b) gave him verbal consent to enter, but that he understood that she did not want them there. § 87(2)(b) was spitting in his face, yelling at him, not interacting with the other officers, and continually following him around the apartment. PO Duffy entered to only look for the knife. Sgt. Lutz believed that PO Duffy searched for the knife because it was permitted by the shelter (BR9; BR10).

In PO Duffy's BWC from 1:00-1:30 (BR2), PO Duffy stands at § 87(2)(b) door and asks her if she has contraband like knives or razor blades. § 87(2)(b) tells the officers that she told another resident that she will defend herself if anyone hurts her or her family. § 87(2)(b) states, "you want to come in and search?" PO Duffy asks, "do you mind if I do?" § 87(2)(b) opens the door further and states, "you're free to come in and search." PO Duffy replies, "okay, let's go." He does not have a warrant.

In PO Duffy's BWC, from 2:30-10:50, § 87(2)(b) refuses Sgt. Lutz's offer to file a report for her and § 87(2)(b) tells them she wants them to get out of there. She states she did not call them. PO Duffy searches her dresser and § 87(2)(b) tells them that she does not want them to be there and wants them to "search and leave." Beginning at 2:30, she states multiple times that she wants officers "out of here." PO Duffy searches her purse and clothes under the bed. She tells them that she will sue the officers. She tells them to "search and get the fuck out" multiple times. She tells

them what they are doing is not right. PO Duffy searches the closet, bathroom, and kitchen before leaving (BR2).

According to *People v. Jakubowski*, 100 A.D.2d 112 (citing *United States v. Dichiarinte*, 445 F.2d 126), searches have been held invalid where the police have exceeded the consent or where, after the defendant has revoked his oral consent, the police continued the search (BR11).

As per BWC and PO Duffy's and Sgt. Lutz's testimony, § 87(2)(b) first voluntarily offered and then consented to the officers' entry and search of her unit. However, she then withdrew her consent during the entry and search and PO Duffy and Sgt. Lutz stayed inside the apartment without a warrant. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A-C be closed as **substantiated**.

Allegation D-Force: Police Officer CODY DUFFY used physical force against § 87(2)(b)

§ 87(2)(b) alleged that § 87(2)(b) was walking around when an officer shoved her. § 87(2)(b) stumbled but did not fall (BR4).

In PO Duffy's BWC from 6:25-6:35, he opens the armoire left and then right door. § 87(2)(b) is on his right side. PO Duffy states, "oh I'm sorry" and § 87(2)(b) states, "oh, you hit my daughter?" PO Duffy apologizes again. § 87(2)(b) states that he hit § 87(2)(b) (BR2).

PO Duffy, Sgt. Lutz, and PO Ohman explained that § 87(2)(b) was following § 87(2)(b) as § 87(2)(b) followed PO Duffy. § 87(2)(b) was bumped with the door by accident. PO Duffy apologized. No officers ever shoved or pushed § 87(2)(b) (BR9; BR10; BR12).

As per BWC and officer testimony, no officer pushed § 87(2)(b) § 87(2)(g)

§ 87(2)(b), it is recommended that Allegation D be closed as **unfounded**.

Allegation E-Force: Police Officer CODY DUFFY used physical force against § 87(2)(b)

When PO Duffy went into her bathroom, § 87(2)(b) said her hair products were on the counter. She moved her rat-tail comb with a thin end and PO Duffy grabbed her wrist and pushed it close to her face. § 87(2)(b) never picked up her comb or tried to touch PO Duffy (BR4).

In PO Duffy's BWC from 7:50-8:08, PO Duffy enters the bathroom and there are hair products on the counter. PO Duffy moves a comb with a long metal pointed end into the sink. § 87(2)(b) comes in stating, "don't touch my fucking comb" and grabs the comb. She moves her arm up while holding the comb. PO Duffy grabs her wrist and tells her to drop it. § 87(2)(b) begins to yell about PO Duffy putting his hands on her. PO Duffy tells her to put it down again. He takes it from her and holds it for the rest of the incident. Sgt. Lutz tells § 87(2)(b) she cannot hold it (BR2).

PO Duffy explained § 87(2)(b) comb could have been used as a weapon because of the pointed end and she grabbed it away from him. He grabbed her wrist and confiscated it because he did not want it to be used to harm § 87(2)(b) the members of service, or her children. § 87(2)(b) demeanor also indicated to PO Duffy that she could use it as a weapon (BR9).

As per Patrol Guide 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life (BR13).

As per BWC and all the testimonies, § 87(2)(b) did not intend to use the comb as a weapon, but it was very pointed with a thin metal end § 87(2)(g)

it is recommended that Allegation E be closed as **exonerated**.

Allegation F- Abuse of Authority: Police Officer CODY DUFFY made a sexually suggestive remark to § 87(2)(b)

§ 87(2)(b) alleged that PO Duffy told § 87(2)(b) “you are not my sexual preference” without any context (BR4).

In PO Duffy’s BWC from 10:50-11:40, all the officers leave the apartment. § 87(2)(b) states she has the officers’ shield numbers and names and tells them to “get the fuck out” while using other slurs and profanity. She calls him a “bitch” and PO Duffy tells her to “leave my sexual preferences out of this” (BR2).

PO Duffy explained that § 87(2)(b) had been making sexual comments at him by telling him to “suck her dick” and other profanity. He told her to leave his sexual preferences out of the conversation because none of his sexual preferences had any relevance to their police work (BR9).

As per BWC, PO Duffy never told § 87(2)(b) that she was not his sexual preference and instead told her to leave his sexual preference out because of her sexual comments to him. § 87(2)(g) be closed as **unfounded**.

Allegation G- Discourtesy: Police Officer Cody Duffy acted discourteously toward § 87(2)(b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) described a patch with a red male devil and a gun on PO Duffy’s uniform. She took offense because of the devil and thought this could be a symbol for White supremacy (BR4).

In PO Duffy’s BWC at 7:51, he is wearing the 103 Precinct Devils Island patch. At the top it says, “Devil’s Island.” The patch has a red devil’s head at the center, with a pair of handcuffs and a firearm to its left, a grim reaper holding a scythe that is dripping with blood and a blood-filled syringe to its right, and a police vehicle above. The words, “NYPD 103 PCT- Jamaica New York,” appear at the bottom of the patch (BR2).

Devil’s Island was a French penal colony located off the coast of French Guiana. The settlement was used as a maximum-security prison and was notorious for its harsh treatment of prisoners, who suffered from high mortality rates (BR14; BR15).

PO Duffy explained that Devils Island is the nickname for the 103 Precinct. He was wearing the morale patch with images of the Devil, a gun, a syringe, handcuffs, a gun, and a grim reaper on his uniform. Wearing this represents the pride in his command. Although this patch is not a

requirement for his uniform, he has worn it every day for a few years. Officers are given the patch for their service in the command. PO Duffy did not remember which member of service gave it to him, but the command provides them. He never got any rules or regulations when he received it. Many officers in the command wear this (BR9).

Sgt. Lutz explained that many members of service of the 103 Precinct wear this morale patch on their uniforms to show pride. As a supervisor, she explained the NYPD authorizes this patch (BR10).

Per NYPD Patrol Guide Procedure 200-02, the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear, and maintain order. As part of their core values, the NYPD maintains a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility (BR16).

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

It is therefore recommended that Allegation G and H be closed as **substantiated** § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR20).
- Sergeant Suzanne Lutz has been a member of service for 15 years and has been a subject in two CCRB complaints and one allegation, none of which were substantiated. § 87(2)(g)
- Police Officer Cody Duffy has been a member of service for three years and has been subject in five CCRB complaints and 21 allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Daniel Ohman has been a member of service for six years and has been subject in three CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Matthew Fallon has been a member of service for five years and has been subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Francis Marzillo has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject (BR25).

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] filed a Notice of Claim with the City of New York sever permanent personal injuries, emotional distress, anxiety, and emotional distress and seeking one million dollars as redress. There is no 50H hearing scheduled (BR27).

Squad: 7

Investigator:	<u>Lianne May</u>	<u>Investigator Lianne May</u>	<u>January 3, 2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Manager Vanesa Rosen</u>	<u>May 11, 2022</u>
	Signature	Date

Reviewer:		
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Signature

Print Title & Name

Date